



Appeal Decision

Site visit made on 5 August 2026

by R Lawrence BSc (Hons), PGDip (TP), MRTPI

an Inspector appointed by the Secretary of State

Decision date: 16 September 2026

Appeal Ref: 6008528

Henhurst Lodge, Beare Green Road, Beare Green RH5 4PX

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
- The appeal is made by Susan White against the decision of Mole Valley District Council.
- The application Ref is MO/2025/02135.
The development proposed is Retention of the pre-existing dwelling following the erection of the replacement dwelling permitted in July 2017 under MO/2016/2052.

Decision

1. The appeal is dismissed.

Preliminary Matter

2. Since the appeal start date, a revised National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were invited to comment on its relevance to their cases and I have had regard to the comments received in my consideration of the appeal.
3. An amended plan showing a no-dig driveway was submitted with the appeal. This provides additional construction detail and does not fundamentally alter the proposal. As the appeal timetable allowed the main and interested parties to comment, I am satisfied that accepting the plan would not cause procedural unfairness. I have therefore taken the amended plan and the representations received into account in reaching my decision.

Main Issues

4. The main issues are:
 - whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and any other relevant development plan policies;
 - the effect of the proposal on the openness of the Green Belt;
 - the effect of the proposal on the character and appearance of the area;
 - the effect of the proposal on ancient woodland; and
 - whether any harm by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the development.

Reasons

Whether the proposal is inappropriate development in the Green Belt

5. The site lies within the Metropolitan Green Belt. Policy GB7 of the Framework identifies forms of development which are not inappropriate in the Green Belt. The appellant contends that the proposal would meet the grey belt exception in policy GB7(g) and further contends that the dwelling already exists and therefore does not comprise new development.
6. Policy EN1 of the Mole Valley Local Plan 2024 (LP) contains a high level of consistency with the Framework, setting out a number of exceptions to inappropriate development which broadly align with those in the Framework. However, the Framework includes the specific grey belt provisions which are of particular relevance to the appellant's case.
7. The existing dwelling, which remains fully intact on site, may not be a new structure. However, its demolition was a key justification for the erection of a replacement dwelling. That replacement dwelling would constitute new development, and the exception in policy GB7 relating to the replacement of existing buildings, would no longer apply.
8. The appellant also relies upon policy S5 of the Framework, referring to the retention of a lawful existing building and the fact that the site comprises previously developed land. I acknowledge those characteristics. However, policy S5 is a general policy relating to development outside settlements and does not displace the specific Green Belt provisions of policy GB7 which apply to this site. The key question therefore remains whether the proposal falls within one of the exceptions identified by policy GB7.
9. The proposal could constitute grey belt land, as it sits within an established residential curtilage outside of any built-up area and could therefore be regarded as previously developed land. Furthermore, the site does not make a strong contribution to the purposes of including land within the Green Belt. However, the Framework also requires there to be a demonstrable unmet need for the type of development proposed. The appellant argues that there is an unmet need for housing in the district, referring to the Council's housing delivery performance and stating that delivery over the previous three years has fallen below 75% of the housing requirement.
10. The appellant says that retaining the dwelling would add one unit to the district's housing stock and help address this shortfall. Whilst it can now demonstrate a five-year supply of deliverable housing land, the most recent Housing Delivery Test result remains below 75%. Consequently, having regard to policy GB7(g)(ii) and footnote 41 of the Framework, I am satisfied that there is an evidenced unmet need for housing. The retention of the dwelling would contribute one additional dwelling to the district's housing stock and therefore satisfies this criterion.
11. Turning to criterion iii of policy GB7(g), the appellant refers to a nearby bus service. However, no evidence has been provided to show that it stops close to the site. Beare Green Road does not benefit from pavements or street lighting and, as such, does little to encourage journeys on foot. The site is also well separated from Beare Green village and the railway station.
12. I have considered the Council's reliance on policy TR3 of the Framework and the associated Connectivity Tool, which assigns the site a score of 25/100. The Framework makes clear that the Tool should be considered alongside local evidence and professional judgement. However, that wider evidence does not

support the appellant's case. Although there is a railway station at Holmwood and a bus service within Beare Green, the site is substantially separated from those facilities and the routes to them are constrained by the absence of footways and the characteristics of the A29.

13. Consequently, even if Beare Green provides a reasonable range of day-to-day services and facilities, future occupiers would be largely reliant upon the private car to access them. This would not provide the genuine choice of travel modes sought by the Framework. Having regard to policy TR3, I therefore do not find the appeal site to be a sustainable location for additional housing development. Accordingly, the proposal would fail to satisfy criterion iii of policy GB7(g).
14. I note the appellant's reliance on the fact that the dwelling is already present on the site. However, the appeal proposal would not merely retain an existing building. It would facilitate the creation of an additional residential unit alongside the approved replacement dwelling. That does not overcome the conflict identified above.
15. In order to benefit from the Green Belt exception relating to grey belt land, proposals must accord with all of the criteria set out in policy GB7 g). In light of the conflict set out above, regarding the sustainability of the location, the proposal would fail to accord with policy GB7 g). No other exceptions have been drawn to my attention. Therefore, I find that the proposal would constitute inappropriate development in the Green Belt.

Openness

16. A fundamental aim of Green Belt policy, as reflected in policy GB1 of the Framework, is to prevent urban sprawl by keeping land permanently open. In assessing the effect of the proposal on openness, I have had regard to both its spatial and visual dimensions.
17. The site lies within an existing residential curtilage. Nevertheless, the proposal would increase the amount and spread of built development across the site by retaining the existing dwelling alongside the approved replacement dwelling. The creation of two separate residential curtilages would also be likely to result in additional domestic activity and paraphernalia. Furthermore, the proposal includes an additional access road which, whilst at ground level, would extend a considerable distance from the site entrance due to the size of the plot.
18. In spatial terms, the proposal would result in harm to openness through the retention of an additional dwelling, the associated residential curtilage and the provision of a new access road. Together, these elements would increase the extent of development across the site. In visual terms, the dwellings would be readily apparent within the site, particularly given their elevated position relative to the entrance. Although views from outside the site would be limited, some glimpsed views would remain possible from the surrounding roads. As such, the proposal would also give rise to visual harm to openness.
19. Taking these factors together, I find that the proposal would erode the openness of the Green Belt in both spatial and visual terms. Whilst the limited visibility of the site moderates that harm to some extent, it does not overcome it. Consequently, I attach considerable weight to the resulting harm to openness. Although the site does not make a strong contribution to the Green Belt purposes, the proposal

would nevertheless result in some encroachment into the countryside through the retention of an additional dwelling and its associated residential use.

Character and appearance

20. The site lies to the side of Beare Green Road in a rural, well-wooded area. It is bordered by dense mature trees and vegetation. Built development nearby is sporadic, generally set within large plots and interspersed with mature vegetation and woodland. The built form on the appeal site comprises the existing dwelling and the new dwelling under construction, which was originally approved as a replacement dwelling.
21. Whilst public views of the site would be very limited, both dwellings would be seen in the same views, particularly from within the site. The increase in built form would result in a slight erosion of the site's spacious and verdant character. Although the resultant plots would remain relatively large, they would be noticeably smaller than those which typically characterise the surrounding area. Furthermore, the relatively close proximity of the two dwellings would create a cluster of development that would appear somewhat unusual when compared with the sporadic and dispersed pattern of built form in the locality.
22. The reduction in open garden space and creation of two separate residential curtilages would also introduce a more urbanised appearance to the site. Nevertheless, the generous overall size of the appeal site, the retention of substantial vegetation and the very limited public visibility of the development would temper these effects. Overall, I find that the proposal would result in modest harm to the character and appearance of the area, in conflict with policy EN4 of the LP which requires development to respond to the prevailing pattern of development and complement the character of the area.

Ancient woodland

23. The proposal includes a new driveway, to provide separate access to the existing house, proposed to be retained. The driveway would run roughly parallel to the site boundary with the road and would cut directly through a section of ancient woodland. The access road is lengthy and would introduce vehicular movements within an area of ancient woodland where no formal access currently exists.
24. Policy N6 of the Framework states that development resulting in the loss or deterioration of irreplaceable habitats, such as ancient woodland, should be refused, unless there are wholly exceptional reasons and a suitable compensation strategy exists.
25. Whilst the proposed access would utilise a no-dig construction method, ancient woodland derives its value not only from its trees but also from the ancient soils, root systems and ecological communities that have developed over a considerable period. Consequently, the absence of excavation does not automatically mean that harm would be avoided.
26. A new access has the potential to affect root environments, soil conditions, drainage patterns and the wider functioning of the habitat, as well as increase activity within the woodland.
27. It is further contended that existing trees, hedgerows and other vegetation would be retained, thereby preserving wildlife corridors and the wider landscape character of

the site. However, little substantive evidence has been provided to demonstrate this. In any event, the retention of existing vegetation would not remove the potential for harm arising from the proposed access itself, including increased activity within the ancient woodland, disturbance to the habitat, soil compaction, and changes to root environments and soil conditions.

28. It is submitted that the proposed access is necessary to provide an independent means of access to the retained dwelling. However, there is little evidence before me to demonstrate why a separate vehicular access is essential. No assessment has been provided of alternative access arrangements, including the continued use of a shared access or alternative routes that might reduce impacts on the ancient woodland.
29. Whilst the appellant contends that the access would be constructed using a no-dig method, only limited information has been submitted regarding its likely effects. In the absence of compelling evidence that less harmful alternatives have been explored and discounted, I find that the convenience of providing a separate access does not amount to a wholly exceptional reason capable of justifying potential harm to this irreplaceable habitat.
30. In the absence of detailed arboricultural and ecological evidence, I cannot be satisfied that the proposed driveway would avoid the loss or deterioration of this irreplaceable habitat. Furthermore, there are no wholly exceptional reasons before me, or a suitable compensation strategy, to justify the proposed development within ancient woodland. I therefore find that the proposal would result in a likely harmful effect on ancient woodland. It would be contrary to policy EN9 of the LP, which affords a high level of protection to irreplaceable habitats and states that development resulting in adverse impacts on such habitats will be refused unless there are wholly exceptional circumstances and the impacts can be mitigated.

Other considerations

31. The proposed development would constitute inappropriate development in the Green Belt and would result in a loss of openness. The Framework establishes that substantial weight should be given to any harm to the Green Belt. It would also be harmful to ancient woodland, and to the character and appearance of the area. Very special circumstances will not exist unless the harm to the Green Belt and any other harm is clearly outweighed by other considerations.
32. In considering the appellant's case, I am mindful that many of the matters now advanced in support of retaining the existing dwelling arise from the appellant's preference to depart from the approved replacement dwelling scheme as originally envisaged.
33. Planning permission was granted in 2017 for a replacement dwelling¹, with the demolition of the existing dwelling forming an integral part of that proposal. In granting that permission, the effects associated with demolition, construction activity and ecological mitigation were accepted as part of the overall planning balance. Against that background, I attach limited weight to arguments which now rely upon the avoidance of those previously accepted consequences as a justification for retaining an additional dwelling on the site.

¹ Application ref: MO/2016/2052/PLA

34. The appellant also refers to the historic interest of the existing dwelling, which is said to have origins as a former lodge associated with the historic Henhurst Estate and to retain a number of traditional architectural features. Whilst I acknowledge that the building may possess some local historic interest, it is not a designated heritage asset, nor is it locally listed. I therefore attach only limited weight to this consideration.
35. The appellant further contends that retaining the dwelling would avoid demolition waste, vehicle movements associated with the removal of materials, and temporary impacts such as noise and dust. In this regard, I have considered the support in policy CC2 of the Framework for the reuse of existing structures and materials, together with the support in policy CC3 for measures which improve the resilience of existing buildings.
36. Whilst retaining the dwelling would provide some benefits in those respects, the evidence before me does not demonstrate that they would be substantial. Moreover, those benefits largely arise from avoiding demolition works that were previously accepted as part of the approved replacement dwelling scheme. Accordingly, I afford these considerations only limited weight.
37. Finally, the appellant argues that retention of the dwelling would avoid disturbance to the bat roost identified within the building. However, ecological mitigation measures were previously considered acceptable in connection with the approved replacement dwelling. Whilst the continued retention of the structure may provide some ecological benefit, I attach only limited weight to this consideration.
38. Taken individually or cumulatively, these considerations attract limited weight and fall well short of clearly outweighing the substantial harm to the Green Belt, together with the additional harm identified to ancient woodland and the character and appearance of the area. Consequently, the very special circumstances necessary to justify the development do not exist.
39. The proposal would therefore conflict with policy EN1 of the LP and the Framework, insofar as they seek to avoid inappropriate development in the Green Belt.

Conclusion

40. The proposal would be inappropriate development in the Green Belt, causing harm to openness, ancient woodland and the character and appearance of the area. The limited benefits identified do not clearly outweigh those harms and very special circumstances do not exist.
41. Accordingly, the proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. For the reasons given above the appeal is dismissed.

R Lawrence

INSPECTOR